

Sadanand vs Chhedalal (Died) (Deleted) on 1 November, 2022

Author: P. Sam Koshy

Bench: P. Sam Koshy

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

SA No. 157 of 2007

1. Sadanand S/o Shri Chheda Lal Dewangan Aged About 32 Years
Present R/o Mahakali Mandir, Chandrapur, Post Office Chandrapur
District Chandrapur (Maharashtra)., District : Chandrapur, Maharashtra
2. Smt. Bhikhi Bai W/o Shri Chhedalal Dewangan Aged About 55 Years
R/o Village - Pharadpod Post Office Pharadpod, Tahsil Dondilohara,
District Durg. (Plaintiffs), District : Durg, Chhattisgarh

----Appellants/Plaintiffs

Versus

1. Chhedalal (Died) (Deleted) As Per The Hon'ble Court Order Dated 10-06-2021
2. Smt. Rukhmani Devi (Died) As Per Honble Court Order Dated 13-05-2019.
3. Gajanand S/o Shri Chhedalal Dewangan Aged About 29 Years R/o
Village - Gabdi, Post Office - Gabdi, Tahsil - Gunderdehi, R.I.C.
Arjunda, District Durg Chhattisgarh., District : Durg, Chhattisgarh
4. Narendra Kumar S/o Chhedalal Dewangan Aged About 26 Years R/o
Village - Gabdi, Post Office - Gabdi, Tahsil - Gunderdehi, R.I.C.
Arjunda, District Durg Chhattisgarh., District : Durg, Chhattisgarh
5. Punit Ram S/o Chhedalal Dewangan Aged About 21 Years R/o Village
- Gabdi, Post Office - Gabdi, Tahsil - Gunderdehi, R.I.C. Arjunda,
District Durg Chhattisgarh., District : Durg, Chhattisgarh
6. Churaman (Died) Through Lrs. As Per Honble Court Order Dated 13-05-2019 And 16-07-2019.
 - 6.1(A)- Sandeep Kumar Ganguli S/o Late Churaman Aged About
45 Years, R/o. Village Gabdi, Tahsil Gunderdehi, District Balod
C.G.
 - 6.2(B)- Durga Rao D/o Late Churaman Aged About 65 Years R/o.
Village Gabdi, Tahsil Gunderdehi, District Balod C.G.
 - 6.3(C)- Bhagwati Rao D/o Late Churaman Aged About 63 Years

R/o. Village Gabdi, Tahsil Gunderdehi, District Balod C.G.

6.4(D)- Gayatri Rao D/o Late Churaman Aged About 61 Year, R/o
Rajim, Nayapara, Rajim, District Raipur C.G.

6.5(E)-. Asha Rao D/o Late Churaman Aged About 48 Years R/o
Kushalpur, Raipur, District Raipur.

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6.6(F)-. Arundhati Rao D/o Late Churaman Aged About 42 Years

R/o. Village Chikhali, Post Narratola, Tahsil Doundi, District Balod.

7. Kartik (Died) through Lrs. As Per Honble Court Order Dated 13-05-2019.

7(A) Nem Singh, S/o Late Kartik, aged about 45 years Village Gabdi,
Tahsil Gunderdehi, District Balod Chhattisgarh., District : Balod,
Chhattisgarh

7(B) Rohit, (died) through Lrs. As per Hon'ble Court order dated
14.06.2022

7(B-1) Chandrika W/o Late Rohit, aged about 35 years.

7(B-2) Purendra Son of Late Rohit, age about 12 years.

7(B-3) Janak Nandini D/o late Rohit age about 14 years.

No. 7(B-1) to 7(b-3) are R/o village Gabdi, Tahsil Arjunda, District
Balod C.G.

7(C) Janki D/o late Kartik, aged about 40 years Village Gabdi, Tahsil
Gunderdehi, District Balod Chhattisgarh., District : Balod,
Chhattisgarh

8. Lakhan (Died) Through Lrs. As Per Honble Court Order Dated 13-05-2019 And 19-07-2019.

8.1(A)-. Basant Dewangan S/o Late Lakhan Aged About 62 Years

8.2(B)-. Mahesh Dewangan S/o Late Lakhan Aged About 60 Years

8.3(C)-. Narsingh S/o Late Lakhan Aged About 45 Years

8.4(D)-. Kumari D/o Late Lakhan Aged About 55 Years

8.5(E)-. Dhaneshri D/o Late Lakhan Aged About 48 Years

9. Smt. Ajarotin Bai (Died) Through Lrs. As Per Honble Court Order
Dated 13-05-2019 And 19-07-2019.

9.1(A)-. Bisheshar S/o Dharoji Aged About 61 Years

9.2(B)-. Teekam Lal S/o Dharoji Aged About 52 Years

9.3(C)- Rukhmani D/o Dharoji Aged About 58 Years

9.4(D)-. Jantri D/o Dharoji Aged About 55 Years

10. Shri Sita Ram (Died) Through Lrs. As Per Honble Court Order Dated
13-05-2019 And 19-07-2019.

- 10.1(A). Ghanshyam S/o Late Sita Ram Aged About 25 Years
- 10.2(B). Chameli D/o Late Sita Ram Aged About 40 Years
- 10.3(C). Nain Kumari D/o Late Sita Ram Aged About 31 Years
- 10.4(D). Suman D/o Late Sita Ram Aged About 30 Years
- 10.5(E). Dev Kumar D/o Late Sita Ram Aged About 28 Years

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- 11.Amar Singh (Died) Through Lrs. As Per Honble Court Order Dated 13-05-2019 And 19-07-2019.

- 11.1(A. Bodhani Bai (Deleted), As per the Hon'ble Court order dated 14.06.2022
- 11.2(B). Pyare Lal S/o Late Amar Singh Aged About 61 Years.
- 11.3(C). Yashdhar Kumar S/o Late Amar Singh Aged About 53 Years
- 11.4(D). Geeta Bai D/o Late Amar Singh Aged About 64 Years
- 11.5(E). Seeta Bai D/o Late Amar Singh Aged About 55 Years
- 11.6(F). Rainbati D/o Late Amar Singh Aged About 50 Years
- 11.7(G). Rambati D/o Late Amar Singh Aged About 44 Years

- 12.Salik S/o Shri Sukhu Halba R/o Village - Gabdi, Post Office - Gabdi, Tahsil - Gunderdehi, R.I.C. Arjunda, District Durg Chhattisgarh., District : Durg, Chhattisgarh

- 13.Ram Nath S/o Shri Sukhu Halba R/o Village - Gabdi, Post Office - Gabdi, Tahsil - Gunderdehi, R.I.C. Arjunda, District Durg Chhattisgarh., District : Durg, Chhattisgarh

- 14.Ghanshyam S/o Shri Sukhu Halba R/o Village - Gabdi, Post Office - Gabdi, Tahsil - Gunderdehi, R.I.C. Arjunda, District Durg Chhattisgarh., District : Durg, Chhattisgarh

- 15.Vedlal S/o Late Shri Ram Bharosa Kosta Aged About 56 Years R/o Village - Gabdi, Post Office - Gabdi, Tahsil - Gunderdehi, R.I.C. Arjunda, District Durg Chhattisgarh., District : Durg, Chhattisgarh

- 16.Chhattisgarh State Through Collector Durg Chhattisgarh., District : Durg, Chhattisgarh ----- Respondents/Defendants

For Appellants : Mr. Jitendra Gupta., Advocate For Respondents : Mr. Praveen Dhurandhar, Advocate. For Respondent No. 16 : Mr. Avinash K. Mishra, G.A. Hon'ble Shri Justice P. Sam Koshy Order On Board 01.11.2022

1. The instant is a Plaintiff's Second Appeal under Section 100 of the CPC. The challenge is to the impugned Judgment and Decree passed by the 8th Additional District Judge (Fast Track Court) Durg in Civil Appeal No. 3-A/2004 decided on 30.03.2006.

2. Vide the impugned Judgment, the First Appellate Court has partly allowed the Appeal of the Plaintiffs and has passed a decree holding that the Plaintiff No. 1 would also be entitled for 1/5 th of the share in the suit property reflected in Schedule A. As regards the suit property in Schedule B, the First Appellate Court has rejected the claim and as regards the property in Schedule C, it has been

held by the First Appellate Court that the Plaintiff No. 1 would be entitled for 1/5 of the share of the total value of the property reflected in Schedule-C or in alternative the Defendants would have to give agricultural land to the extent of the Plaintiff No. 1's share i.e. 1/5 of the Schedule-C suit property.

3. The instant appeal was admitted for hearing with the following substantial question of law:-

"Whether the First Appellate Court was justified in holding that the Plaintiff No. 2- Smt. Bhikhi Bai being the first wife of Chhedlal is not entitled for share in the partition held between plaintiff No. 1 and defendants No. 1 & 3 to 5, by recording a finding, which is perverse to the record?"

4. Further on 23.01.2020, this Court had framed two more following additional substantial questions of law:-

1. "Whether the First Appellant Court was justified in granting 1/5th share in the suit property to Plaintiff No. 1?"

2. "Whether the First Appellate Court was justified in granting compensation to defendants No. 3, 4 and 5, being the sons' of Chhedlal, born out of his second marriage with Rukhmani Bai, after having held that the suit property is the ancestral property of Chhedla ignoring the fact that the benefit of Section 16(3) of the Hindu Marriage Act, 1955 would not be applicable to the ancestral property in the light of the judgment rendered by the Supreme Court in the matter of Jinia Keotin and others vs. Kumar Sitaram Manjhi and Orders [(2003) 1 SCC 730] by recording a finding which is perverse to the record?"

5. The facts in brief relevant for adjudication of the instant Second Appeal is that the whole dispute revolves around the property inherited by one Chhedlal S/o Lt. Ram Bharosa. The father of Chhedlal, Ram Bharosa had a chunk of property at village Gabdi Tehsil Gunderdehi District Durg as it then was presently District Balod. After the death of Ram Bharosa, his property stood divided into three shares between his wife Birjhi Bai and two sons Vedlal and Chhedlal. The Chhedlal inherited the property which is reflected in Schedule A, B, & C to the plaint. The Defendant No.1 (Chhedlal) was married to Plaintiff No. 2 (Bhiki Bai) with whom the Plaintiff No. 1 (Sadanand) was born. Meanwhile, the Defendant No. 1 Chhedlal started living with another lady i.e. Defendant No. 2 (Rukhmani Devi) and from whom there were three sons born i.e. the Defendants No. 3 to 5. It is said that after the Defendant No. 1(Chhedlal) started living with the Defendant No. 2(Rukhmani) and other Defendants No. 3 to 5. The Plaintiffs were chased out of the house and they had to take shelter elsewhere. It was subsequently learnt by the Plaintiffs that the Defendant No. 1 i.e. the father of the Plaintiff No. 1 and husband of Plaintiff No. 2 had started alienating his ancestral property detriment to the interest of the Plaintiffs. It is then that the Plaintiffs were compelled to file a suit seeking for a relief of partition, possession and damages. The Plaintiffs when they filed a suit seeking for partition and possession, it was emphatically mentioned in the plaint itself, that they need their share in the suit property belonging to Chhedlal. At one point of time, the Plaintiffs had claimed for 1/6 th of the

share each and subsequently they had sought for 1/3rd of the total suit property cumulatively.

6. The Trial Court at the first instance where the suit was instituted, vide Judgment and Decree dated 16.01.2002 rejected the suit of the Plaintiffs holding that the suit property in Schedule A, B, C was not an ancestral property. That the Plaintiffs could not prove by leading cogent evidence establishing that it was an ancestral property. The Trial Court further also rejected the claim of the Plaintiffs so far as his claim in Schedule-B property is concerned on the ground that since it was not an ancestral property, the Defendant No. 1 had the right to sale and the Defendants No, 6 to 14 were all bona fide purchasers. It is this Judgment and Decree dated 16.01.2002 in Civil Suit No. 4-A/2019, which was challenged in a First Appeal i.e. Civil Appeal No. 3-A/2004.

7. The First Appellate Court however after considering the specific pleadings made by the Plaintiffs in the Plaint and also the stand taken by the Defendants in their WS, allowed the suit to the extent of the Plaintiff No. 1 being held to be entitled for 1/5 th of the share in the suit property reflected in Schedule-A and so far as his claim for Schedule- B is concerned, the First Appellate Court has held that the sale made by the Defendant No. 1 of his property reflected in Schedule-B, to be a Bonafide deal. However, from the entire sale consideration so far as the claim of the Plaintiff in the Schedule-B suit property is concerned, the finding of the First Appellate Court was that the Plaintiffs would not be entitled for any relief as the defendants 6 to 14 were bonafide purchasers, coupled with the fact that there was no challenge to the sale deed entered into between the Defendant No. 1 and Defendants No. 6 to 14. As regards the claim of the Plaintiffs for his share in the suit property reflected in Schedule-C, the First Appellate Court has held that the Plaintiffs would be entitled for 1/5th of the total value of the property in Schedule-C. The Defendants should make the payment to the Plaintiff No. 1 in this regard or in the alternative to provide agricultural land worth the share be paid to the Plaintiff No. 1 so far as value of property in Schedule-C.

8. Coming to the first substantial question of law as to whether the First Appellate Court was justified in holding that the Plaintiff No. 2 was not entitled for any share in the partition held between Plaintiff No. 1 and Defendants No. 1, 3 to 5. What is to be seen is the fact that even in the Plaint as also in the WS filed by the defendants 1 to 5, it has emphatically come that the suit property in-fact was an ancestral property inherited by the Defendant No. 1 from his father Ram Bharosa.

9. Under the said circumstances, when the husband of the Plaintiff No. 2 i.e. the Defendant No. 1 (Chhedlal) was alive, the wife of the Defendant No 2 would not have got a share in the suit property under the provisions of the Hindu Succession Act. So far as the other male members in the family are concerned, the First Appellate Court has rightly apportioned the share of the suit property into 1 is to 5 i.e. between the Plaintiff No. 1, the Defendant No.1 and Defendants No. 3 to 5. The Defendant No. 1 being the father of the Plaintiff No. 1 and Defendants No. 3 to 5. It is in this way that the property was divided into 1/5th between the Plaintiff No. 1 and Defendants No. 1, 3 to 5.

10. In one of the judgment by the Bombay High Court in the case of Uday Narendra Shah vs. Narendra Amritlal Shah reported in AIR 2014 Bom 119, the Bombay High Court in paragraph 8, has held as under:-

The deceased was the wife of the defendant. She was not a member of his joint Hindu family except as his wife. It is only when the defendant would constitute HUF for the purpose of his succession that his wife may be shown as the member of the HUF. The wife of a Hindu Coparcener in a HUF is not a Coparcener. She does not get any interest by virtue of her birth in her marital family. Only a person who would derive an interest by virtue of his/her birth in a family would become a Coparcener, a Coparcenery being a much narrower body than a Hindu Joint Family.

11. And further in Paragraph 10 of the aforementioned case of the Bombay High Court while referring to Mulla's Hindu Law, Twentieth Edition, Volume-I, Chapter XII, The Bombay High Court has held as under:-

"10 The rules and existence of coparcenary or joint family properties enumerated in the case of State Bank of India Vs. Ghamandi Ram AIR 1969 SC 1330 have been considered by this Court in the case Shalini Sumant Rauth Vs. Milind Sumant Rauth 6 NMSL.2347/13-SL.1069/13-judgment by this Court in Chamber Summons No. 492 of 2012 in Suit No. 143 of 2010 which sets out in para 7 thereof the interest of a coparcener in a joint family property and the distinction between the coparcenary and a joint family property. The interest in a co- parcenary is only by virtue of the birth. However some of the various rules of joint Hindu family and coparcenary property enunciated in Mulla's Hindu Law, Twentieth Edition, Volume- I, Chapter XII set out in that judgment require enunciation:

1. Male issues acquire an interest in coparcenary property from the moment of their birth [page 357].
2. A Hindu coparcenary is a narrower body than the joint family. It includes only those persons who acquire by birth an interest in the joint or coparcenary property. (Hence joint property and coparcenary property or joint Hindu family property or coparcenary property are synonymous) [page 359].
3. The persons who acquire an interest by birth in a joint family property or coparcenary property are sons, grandsons and great-grand sons of the holder of the joint property. They become entitled to joint property upon their birth [Page 359].
4. A joint Hindu family has a common male ancestor with his lineal descendants in the male line [pages 361 & 362].
5. A female cannot be a coparcener although she may be a member of a Joint Hindu Family (the position in law has changed upon the amendment to Section 6 of the Hindu Successions Act, 1956 by the amendment of 2005. That amendment applies to daughters of a coparcener and not to a wife of a coparcener) [page 362]..

6. The ownership of a joint family property is with the coparceners consisting of the Karta and his sons. They are the co-owners or coparceners (Hence the expression co-owners and coparceners are synonymous) [page 364].
7. The ownership of a coparcenary is in the whole body of coparceners. (Hence it would exclude their wives. Wives cannot be coparceners in a coparcenary. Only the coparceners would be co-owners. Hence a wife would not co-own a share along with her husband in the HUF of the husband [page 366].
8. Coparcenary interest is fluctuating. It is enlarged by the deaths in the family; it is diminished by the births in the family. Such interest is called undivided coparcenary interest (The death of a wife of a coparcener cannot augment or diminish the share of the other coparceners or co-owners) [page 366].
9. On the death of a coparcener the others take by survivorship the share which he had in common earlier. Such share cannot entirely devolve upon the wife. Otherwise the very concept of coparcenary would be destroyed. It would tantamount to the wife succeeding to the estate of the husband in the coparcenary absolutely [page 366].
10. The interest of the deceased member passes on his death to the surviving coparcener(and not to the wife) [page 366].
11. A coparcener has joint interest or joint possession in joint family property or coparcenary property (his wife cannot have interest jointly with the other coparceners) [page 370].
12. On the death of a coparcener his interest in the coparcenary property does not pass by succession to his heirs; it passes by survivorship to the other coparceners (This was the position in old uncodified Hindu law. There was a departure therefrom under Section 6 of the Hindu Succession Act, 1956 under which a male Hindu dying intestate leaving behind female heirs or male heirs claiming other female heirs would have their share in the coparcenary property devolved by succession and not by survivorship).
13. The coparceners have community of interest and unity of possession. Hence no coparcener can have exclusive possession of any part of the property (no coparcener can, therefore, also alienate or have a bequeathable interest in any specific part of the property) [page 409].
14. No coparcener can predicate at any given moment what his share in joint family property is. No member would be entitled to a definite share in joint family property or in its income [page 409].
15. Each coparcener is entitled to joint possession and in enjoyment of family property. (Since no coparcener can have any exclusivity of possession or interest, no such interest can be bequeathed or succeeded) [page 410].

16. A coparcener excluded from joint possession is entitled to enforce his right by a suit. He is not bound to sue for partition. He is entitled to sue for joint possession and enjoyment. (Such a right is not available to a wife of a coparcener except for enjoyment and possession of a property which is her matrimonial home or shared residence) (See Section 17 of the Protection of Women from Domestic Violence Act, 2005 (D.V. Act) [page 410]

17. The right to enforce a partition and the right of survivorship go hand in hand. "It is the right to partition which determines the right to take by survivorship" [See Anant Vs. Gopal (1895) 19 Bom 269].

12. The plain reading of the aforesaid two provisions make it emphatically clear that the denial of right so far as the claim made by the Plaintiff No. 2 in the capacity of wife of Defendant No. 1 was not in any manner erroneous or contrary to law.

13. In view of the same, the substantial question of law No. 1 stands decided in the affirmative holding that the First Appellate Court was justified in holding that the Plaintiff No. 2 was not entitled for a share in the suit property.

14. As regards the second question, "whether the First Appellate Court was justified in granting 1/5th of the share in the suit property to the Plaintiff No. 1 is concerned?" It would be relevant at this juncture to refer to the basic pleadings of the Plaintiffs themselves. The Plaintiffs in paragraph-13 of their plaint and also in Paragraph 21 i.e. the relief clause No. 21.1 had claimed as under:-

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6 1,
3, 4, 5 1/6
1/3
, 1, 2, 3, 4 5 2/3
21.1 - 1 - 2 -3
, -1
-2 , 1/3

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15. Since the Plaintiffs themselves had at the first instance substantially claimed for 1/6th of the share in the suit property and when the First Appellate Court has for reasons mentioned in preceding paragraphs has held that the Plaintiff No. 2 would not be entitled for a share while her Husband the Defendant No. 1 was alive. The suit property but naturally was to be divided between the Plaintiff No. 1 and Defendant No. 1 and 3 to 5. Under the said context, the Court below cannot be said to have committed any error while awarding 1/5 th of share in favour of the Plaintiff No. 1. The

substantial question of law No. 2 also thus stands answered in affirmative holding that the First Appellate Court was justified in awarding 1/5th of share in the suit property in favour of the Plaintiff No. 1.

16. Now comes to the substantial question No. 3 which is justifying in granting the share to the defendants No. 3 to 5 who are children born from the second marriage keeping in view the Section 16(3) of Hindu Marriage Act 1955, as is a well settled preposition of law that while considering a case exercising the Second Appellate Jurisdiction by the High Court.

17. What is primarily to be considered is the substantive pleading of the parties and the evidences that they have led before the Court below. The Plain perusal of the plaint and the specific averments, particularly which have been reproduced in the preceding paragraphs, it would be evidently clear that the suit of the Plaintiffs was substantially for partition and was also for seeking a share in the suit property belonging to the Defendant No. 1. At no point of time was the case of the Plaintiffs seeking for ouster of the right and entitlement of the defendants No. 3 to 5 so far as their claim in the suit property is concerned. In other words mean, nowhere was the claim of the plaintiffs at any point of time, made out under Section 16(1) of the Hindu Marriage Act 1955. It was all along the case of the Plaintiffs seeking for the two shares in the suit property one each to the two Plaintiffs. Moreover, even when the Plaintiffs had led the evidence even at that point of time, the claim and contentions of the Plaintiffs was excursively for one share each in suit property belonging to the Defendant No. 1.

18. From perusal of the pleadings and also the records, what is reflected is that the Civil Suit was originally instituted on 13.07.1992 to be precise. Today when the matter is taken up for hearing, it is well past more than 30 years and the matter has reached the stage of Second Appeal. Till date there has been no pleadings by the Plaintiffs seeking for a relief invoking the provisions of Hindu Marriage Act or specifically seeking the ouster of the right and entitlement of the defendants No. 3 to 5 from the suit property.

19. In the absence of any specific pleadings in this regard and also in the absence of any specific evidence led by the Plaintiffs in this regard, it would be difficult for this Court at this juncture to test the veracity of the judgment granting equal share of the defendants No. 3 to 5 in the given factual backdrop, pleadings and evidence on record. In the absence of any specific pleadings, no issue in this regard framed, nor there being any request for framing of additional issues, nor there being any evidence led in this regard, for these reasons also, both the Trial Court as also the First Appellate Court never had an occasion of dealing with the said issue permitting the Plaintiffs now raised.

20. Dealing with the aspect of requirement of specific pleadings, the Hon'ble Supreme Court in the case of State of Uttarakhand V. Mandir Sri Laxman Sidh Maharaj [2017 9 SCC 579] paragraph 24 has held as under:-

By no stretch of imagination, in our view, such a declaration of ownership over the suit property and right of easement over a well could be granted by the Trial Court in plaintiff's favour because even the plaintiff did not claim title in the suit property on

the strength of "adverse possession". Neither there were any pleadings nor any issue much less evidence to prove the adverse possession on land and for grant of any easementary right over the well. The Courts below should have seen that no declaration of ownership rights over the suit property could be granted to the plaintiff on the strength of "adverse possession" (see Gurdwara Sahib vs. Gram Panchayat Village Sirthala & Anr., (2014) 1 SCC 669. The Courts below also should have seen that courts can grant only that relief which is claimed by the plaintiff in the plaint and such relief can be granted only on the pleadings but not beyond it. In other words, courts cannot travel beyond the pleadings for granting any relief. This principle is fully applied to the facts of this case against the plaintiff.

21. Given the said facts and circumstances, pleadings and evidences which have come on records and also it has been dealt with in the preceding paragraphs, the substantial question No. 3 framed by this Court also would have to be answered in the affirmative holding that the Appellate Court was justified while protecting the share of Defendants No. 3 to 5 in the said property.

22. For all the aforesaid reasons, the Present Appeal fails and is accordingly dismissed affirming the judgment of the First Appellate Court.

23. The Registry is directed to draw a decree accordingly.

Sd/-

P. Sam Koshy) Judge Jyoti